

Smt. Shakuntala Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 August 2021 · Writ - C No. 39808 of 2014 · **Writ dismissed for want of prosecution; interim stay of recovery vacated.**

HEADNOTE

Writ challenging a 2013 demand raised after 2004 permanent disconnection, invoking Clause 6.15 of the U.P. Electricity Supply Code, 2005, dismissed for want of prosecution; the 4 August 2014 interim stay of recovery stood vacated. The two-year bar was not decided.

FACTUAL SUMMARY

Smt. Shakuntala Devi challenged a demand of Rs.13,345 raised in 2013 after her electricity connection was permanently disconnected in 2004. She contended that Clause 6.15 of the U.P. Electricity Supply Code, 2005 bars recovery of outstanding dues more than two years after disconnection unless continuously shown as recoverable, citing Satya Narayan. On 4 August 2014 the High Court stayed recovery under the 20 April 2013 demand notice pending counter. After several listings the writ was dismissed for want of prosecution on 5 August 2021.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for want of prosecution

HOLDING

The writ challenging recovery of a 2013 demand after 2004 permanent disconnection was dismissed for want of prosecution when none appeared for the petitioner even on the revised call; any interim order stood vacated. Clause 6.15 was not decided. ¶ 7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 6.15 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 BARS RECOVERY OF A 2013 DEMAND AFTER PERMANENT DISCONNECTION IN 2004

Raised with reliance on Satya Narayan; interim stay granted on 4.8.2014; merits not reached because the writ was dismissed for want of prosecution. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Satya Narayan v. U.P. Power Corporation Ltd. Writ Petition (M/B) No. 9090 of 2012, judgment dated 22.5.2013			petitioner	Referred